

INTERMODAL MOTOR CARRIERS
CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC.,

Complainant,

v.

OCEAN CARRIER EQUIPMENT
MGMT. ASSOC., INC., et al.,

Respondents.

MOTION OF PAUL KEANE AND JOSEPH
De MAY FOR LEAVE TO WITHDRAW AS
CO-COUNSEL FOR RESPONDENT,
EVERGREEN LINE

Pursuant to Rule [502.23](#)(e) of the Commission's Rules of Practice and Procedure, the undersigned Paul M. Keane and Joseph De May move, *on consent*, for permission to withdraw as co-counsel for Respondent, EVERGREEN LINE JOINT SERVICE AGREEMENT, effective February 21, 2022.

Links in this Motion are to the Commission's Web Site, the Cornell Law School Web Site, or the A.B.A. Web Site.

CONSENTS

Pursuant to Rule [502.71](#)(a) the undersigned have conferred with counsel for Complainants and Counsel for Respondents (Cozen & O'Connor), and all have advised that they consent to this Motion.

Respondent, EVERGREEN, also consents and has been served with a copy of this Motion.

BACKGROUND

1. Respondent, EVERGREEN, is represented by lead counsel, Wayne R. Rohde, Christopher Raleigh, and Kathryn Sobotta, of the firm of Cozen & O'Connor. These attorneys represent the other Respondents as well. *See, Notice of Appearance, [Dkt. No. 11](#) (09/16/20).*

2. Mark A. Rabinowitz, also of the firm of Cozen & O'Connor, has filed a Notice of Appearance as “co-counsel” for EVERGREEN. *See, Notice of Appearance, [Dkt. No. 76](#) (11/02/21).*

3. Keane and De May of the firm of Cichanowicz Callan Keane & De May, LLP have also filed Notices of Appearance as “co-counsel” for EVERGREEN. *See, Notice of Appearance, [Dkt. No. 8](#) (09/15/20).*

4. Keane is 75 years old. De May is 72. Both are experiencing health / age-related issues. As a result, they will no longer be in a position to act as co-counsel for EVERGREEN in this proceeding.

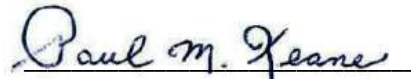
5. Lead counsel, Rohde, Raleigh, and Sobotta, and co-counsel, Rabinowitz, will continue their representation of EVERGREEN.

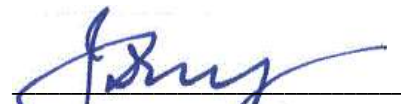
6. Lead counsel have been representing EVERGREEN since the beginning of the case, so the proposed withdrawal will not require any delay of the proceedings.

7. The proposed withdrawal of co-counsel, Keane and De May can therefore be accomplished without material adverse effect on the interests of EVERGREEN. *See, ABA Model Rules [1.16\(b\)\(1\)](#).*

Pursuant to [28 U.S.C. 1746](#)(a), we declare under penalty of perjury that the foregoing is true and correct.

Executed on February 10, 2022.


PAUL M. KEANE


JOSEPH De MAY

FEDERAL MARITIME COMMISSION

Docket No. 20-14
(Link is to Docket Sheet)

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CONSENT OF RESPONDENT
EVERGREEN LINE JOINT SERVICE
AGREEMENT TO WITHDRAWAL OF
PAUL M. KEANE AND JOSEPH De MAY
AS ITS CO-COUNSEL

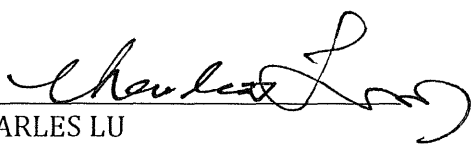
Respondent, EVERGREEN LINE JOINT SERVICE AGREEMENT, consents to the Motion of Paul M. Keane and Joseph De May to withdraw as its co-counsel in this matter.

Executed: February 11, 2022

EVERGREEN LINE JOINT SERVICE AGREEMENT
d.b.a. EVERGREEN LINE

By: Evergreen Shipping Agency (America) Corporation
As North American General Agent

By:


CHARLES LU
Executive Vice President